

**BEFORE THE
FEDERAL MARITIME COMMISSION**

PKDC, LLC,	)	
Complainant,	)	
v.	)	DOCKET NO. 24-21
CMA CGM S.A.,	)	
Respondent	)	

**RESPONDENT’S CONSENTED TO PETITION
FOR EXTENSION OF TIME TO FILE EXCEPTIONS**

Respondent CMA CGM S.A. (“CMA CGM”), pursuant to 46 C.F.R. § 502.69(a), hereby respectfully moves to extend the deadline to file exceptions to the initial decision in this proceeding by thirty (30) days, to October 30, 2026.

Complainant PKDC, LLC (“PKDC”) filed its Verified Complaint against Respondent on or about May 15, 2024. After motion practice, extensive document production, and the taking of depositions, PKDC’s brief (including an appendix of over 1,100 pages and proposed findings of fact) was submitted on May 26, 2026, CMA CGM’s reply brief (including an appendix of over 260 pages, replies to PKDC’s proposed findings of fact, and findings of fact proposed by CMA) was filed on June 29, 2026. PKDC filed its final brief on July 7, 2026.

The administrative law judge issued a 40-page initial decision on September 8, 2026, awarding PKDC in excess of \$16 million in reparations.

Due to the size of the award and the nature of some of the legal issues presented by the initial decision, CMA CGM has retained co-counsel to assist in the preparation of exceptions to

the initial decision and the potential appeal of the Commission's ruling on said exceptions. Co-counsel entered a notice of appearance on September 18, 2026.

Due to the size of the record and the number and complexity of the issues, it will take co-counsel some time to become familiar with the record and provide meaningful assistance. Given the need for co-counsel to become acquainted with the record, the number and complexity of issues with respect to which exceptions may be filed, and the size of the award, CMA CGM asserts that good cause exists to extend the deadline to submit exceptions. The relief sought will permit CMA CGM to fully evaluate the initial decision and the record and adequately prepare exceptions for consideration by the Commission. Extensions of time to file exceptions have been granted under similar circumstances. *20230930-DK-Butterfly, Inc. f/k/a Bed Bath & Beyond, Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Order Extending Deadlines to File Exceptions and Replies and Increasing Page Limits for Exceptions, FMC Docket No. 23-02 (May 7, 2026).

Pursuant to 46 C.F.R. § 502.71(a), undersigned counsel has consulted with counsel for PKDC, who has advised that PKDC consents to the requested extension.

For the reasons set forth above, CMA CGM respectfully requests that the Commission

extend the deadline to submit exceptions to the initial decision by 30 days, setting a deadline of October 30, 2026.

Respectfully submitted,

COZEN O'CONNOR

WILLKIE FARR & GALLAGHER LLP

/s/ Wayne R. Rohde
Wayne R. Rohde
Kathryn Sobotta
2001 M Street, NW
Suite 500
Washington, DC 20036
(202) 463-2507
wrohde@cozen.com
ksobotta@cozen.com

/s/ Tariq Mundiya
Tariq Mundiya
Erica Ross
787 Seventh Avenue
New York, NY 10019-6099
(212) 728-8565
tmundiya@willkie.com
eross@willkie.com

September 23, 2026

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 23rd day of September, 2026, the foregoing Respondent's Unopposed Petition for Extension of Time to File Exceptions was served via electronic mail on:

Luke Mathers, Esq. (lmathers@strtrade.com)

Henry Gonzalez, Esq. (gonzalez@gdvlegal.com)

/s/ Wayne R. Rohde
Wayne R. Rohde